

These Terms of Use (the “Terms”) govern your access to and use of websites, applications, and services (the “Services”) that are provided by The Cleveland Clinic Foundation (“Cleveland Clinic” or “us” or “we”) and linked to these Terms. IF YOU DO NOT AGREE TO THESE TERMS, YOU MAY NOT USE THE SERVICES.

These Terms govern use of the Services:

1. **Use of Services.** These Terms, which incorporate our Privacy Policy, constitute a legally-binding agreement between Cleveland Clinic and you. By using the Services you agree to be bound by and comply with these Terms. You may only use the Services in compliance with these Terms. The Services are not intended for use by you if you are under 13 years of age. By agreeing to these Terms, you are representing to us that you are at least 13 years old.
2. **Services Ownership.** The Services and all associated content (including any derivatives of or enhancements to the same), and all intellectual property rights to the same (including trademarks, service marks, trade names, trade dress), that appear in connection with the Services, are owned by or licensed to Cleveland Clinic.
3. **License.** Cleveland Clinic grants you a revocable right to use the Services solely in accordance with these Terms. The Services are being licensed, not sold, to you by Cleveland Clinic only for use under the Terms. You do not acquire any right, title or interest in or to the Services or any associated content other than the limited license granted to you by these Terms. Any rights not expressly granted to you in these Terms are expressly reserved.
4. **Privacy Policy.** Any information you provide to us is subject to our Privacy Policy, which is incorporated into these Terms and governs our collection and use of your information. By using the Services you consent to the collection and use of this information as provided by our Privacy Policy. If there’s a conflict between the Privacy Policy and these Terms, these Terms will control.
5. **Not Medical Advice.** The information made available to you through the Service is for educational or research purposes only and is not medical advice. It is not a substitute for consultation with a qualified physician or other medical professional.
6. **Prohibited Conduct.** You will not use the Services for any type of inappropriate use. Cleveland Clinic has the right to determine whether any particular use constitutes inappropriate use of the Services. The following are examples (although not a complete list) of inappropriate uses that are prohibited:
 - a. Transmitting or otherwise providing any harmful or objectionable content using the Services, including content that (i) violates or infringes in any way upon the rights of others, such as any copyright, trademark, patent, trade secret, moral right, or other proprietary right of any person or entity, (ii) impersonates another or is fraudulent, unlawful, threatening, abusive, libelous, defamatory, invasive of privacy or publicity rights, vulgar, obscene, profane, pornographic, abusive, or

otherwise reasonably objectionable, or (iii) encourages conduct that would constitute a criminal offense, give rise to civil liability or otherwise violate any law.

- b. Uploading spyware or any other malicious software to the Services.
 - c. Using the Services in a manner harmful to Cleveland Clinic or any third party.
 - d. Using the Services in any way that violates any applicable laws, rules, or regulations.
 - e. Taking any action that imposes an unreasonable or disproportionately large load on the Services infrastructure or that otherwise adversely affects performance of the Services.
 - f. Using the Services for unauthorized framing of or linking to, or access via automated devices, bots, agents, scraping scripts, intelligent search or any similar means of access to the Services or any other materials or information available from the Services.
 - g. Engaging in any other action that, in the judgment of Cleveland Clinic, exposes it or any third party to potential liability or detriment of any type.
 - h. Submitting any personally identifiable information or protected health information into the Services.
9. **Third-Party Websites.** Links to third-party websites are provided for your convenience and reference only. We have no control of these sites, and we are not responsible for their content. We do not endorse, and are not responsible in any way for, any content on these sites and we expressly disclaim any endorsement or responsibility for such content. When you travel from the Services to another website, whether through links provided on the Service or otherwise, you will be subject to the privacy policies (or lack thereof) of these sites. We caution you to use good judgment and to assess the privacy policy of these sites before you provide any personal information.
10. **No Representations and Warranties.** YOU AGREE THAT YOUR USE OF THE SERVICES SHALL BE AT YOUR OWN RISK. THE SERVICES ARE PROVIDED ON AN “AS IS” AND “AS AVAILABLE” BASIS, FOR USE BY YOU AT YOUR OWN RISK WITHOUT EXPRESS OR IMPLIED WARRANTIES OF ANY KIND. WITHOUT LIMITING THE FOREGOING AND TO THE FULLEST EXTENT PERMITTED BY LAW, CLEVELAND CLINIC AND ITS OFFICERS, MEMBERS, MANAGERS, AFFILIATES, SUCCESSORS, ASSIGNS, AGENTS AND REPRESENTATIVES (COLLECTIVELY, THE “CLEVELAND CLINIC PARTIES”) DISCLAIM ANY AND ALL WARRANTIES (1) THAT THE SERVICES WILL MEET YOUR REQUIREMENTS OR ACHIEVE CERTAIN RESULTS; (2) CONCERNING THE AVAILABILITY, ACCURACY, SECURITY, USEFULNESS, TIMELINESS, OR COMPLETENESS OF THE SERVICES OR INFORMATION AVAILABLE

THROUGH THE SERVICES; (3) OF TITLE, NON-INFRINGEMENT, MERCHANTABILITY OR SATISFACTORY QUALITY OR FITNESS FOR A PARTICULAR PURPOSE FOR THE SERVICES.

11. **Waiver.** TO THE FULLEST EXTENT PERMITTED BY LAW, IN NO EVENT WILL CLEVELAND CLINIC OR THE CLEVELAND CLINIC PARTIES BE LIABLE FOR ANY INDIRECT, SPECIAL, INCIDENTAL, PUNITIVE, EXEMPLARY OR CONSEQUENTIAL (INCLUDING LOSS OF USE, DATA, BUSINESS, OR PROFITS) DAMAGES, REGARDLESS OF LEGAL THEORY, WHETHER OR NOT CLEVELAND CLINIC OR THE CLEVELAND CLINIC PARTIES HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND EVEN IF A REMEDY FAILS OF ITS ESSENTIAL PURPOSE, ARISING OUT OF, RELATING TO, OR IN ANY WAY CONNECTED WITH THE SERVICES. YOUR SOLE REMEDY FOR DISSATISFACTION WITH THE SERVICES IS TO STOP USING THE SERVICES.
12. **Liability.** UNDER NO CIRCUMSTANCES SHALL CLEVELAND CLINIC OR THE CLEVELAND CLINIC PARTIES BE LIABLE TO YOU (A) FOR ANY AMOUNT IN EXCESS OF TWENTY-FIVE DOLLARS (\$25); OR (B) ANY INDIRECT LOSSES OR DAMAGES ARISING OUT OF OR IN CONNECTION WITH YOUR USE OF OR INABILITY TO USE ANY SERVICES. THIS IS A COMPREHENSIVE LIMITATION OF LIABILITY THAT APPLIES TO ALL LOSSES OF ANY KIND. THE ALLOCATION OF RISK SET FORTH IN THESE TERMS IS AN ESSENTIAL BASIS OF THE BARGAIN BETWEEN YOU AND CLEVELAND CLINIC. YOU AGREE THAT YOU MAY ONLY COMMENCE A CAUSE OF ACTION RELATED TO THE SERVICES WITHIN ONE (1) YEAR OF SUCH ACTION ACCRUING, AND ANY ATTEMPT TO BRING SUCH AN ACTION AFTER SUCH ONE (1) YEAR PERIOD IS BARRED. Some jurisdictions do not permit limitations of liability and in those jurisdictions some of the foregoing limitations may not apply to you. The limitations in these Terms shall apply to the fullest extent permitted by law.
13. **Indemnification.** You agree to indemnify and hold harmless Cleveland Clinic and the Cleveland Clinic Parties from and against any and all claims, liabilities, losses, damages, obligations, costs and expenses (including reasonable attorneys' fees and costs) brought by third-parties arising out of, related to, or that may arise in connection with any actual or alleged violation or breach of any of the representations, warranties, agreements or promises made by you in these Terms or based on your use of the Services.
14. **Modification.** Cleveland Clinic may modify these Terms. You should review the Terms regularly. Cleveland Clinic will post notice of modifications to these Terms on the Services. If you do not agree to the modified terms for the Services, you should discontinue your use of the Services.
15. **Class Action Waiver.** TO THE FULLEST EXTENT ALLOWED BY LAW, YOU AND CLEVELAND CLINIC EACH WAIVE ANY RIGHT TO PURSUE A DISPUTE ON A

CLASSWIDE BASIS, INCLUDING BY JOINING A CLAIM WITH THE CLAIM OF ANY OTHER PERSON OR ENTITY OR TO ASSERT A CLAIM IN A REPRESENTATIVE CAPACITY ON BEHALF OF ANYONE ELSE IN ANY LAWSUIT, ARBITRATION OR PROCEEDING.

16. **Jury Trial Waiver.** TO THE EXTENT ALLOWED BY LAW, YOU AND CLEVELAND CLINIC EACH WAIVE ANY RIGHT TO TRIAL BY JURY IN ANY LAWSUIT, ARBITRATION OR OTHER PROCEEDING.
17. **Governing Law; Venue.** These Terms and the use of the Services will be governed by Ohio law without regard for its conflict of laws principles. All claims arising out of relating to these Terms or the Services, except as set forth in this Terms, must be litigated in the state or federal courts located in Cleveland, Ohio and you and Cleveland Clinic consent to the personal jurisdiction of such courts.
18. **No Third-Party Beneficiaries.** These Terms do not create any third-party beneficiary rights.
19. **Force Majeure.** Cleveland Clinic will not be liable for any delay or failure to perform resulting from causes outside its reasonable control or unforeseen circumstances, such as acts of nature, fire, flood, earthquake, accidents, strikes, war, terrorism, governmental act, failure of common carriers (including without limitation internet service providers and web hosting providers), or shortages of transportation facilities, fuel, energy, labor, or materials.
20. **Complete Agreement.** These Terms constitute the entire and exclusive agreement between you and Cleveland Clinic with respect to the Services, and supersede and replace any other agreements, terms and conditions applicable to the Services. The headers for these Terms are for convenience only and will not affect the interpretation of these Terms. If a provision of these Terms is found unenforceable the remaining provisions will remain in full force and effect, and an enforceable term will be substituted reflecting our intent as closely as possible.
21. **Assignment.** Cleveland Clinic may assign any of its rights under these Terms to an affiliate or to any successor in interest to the business of Cleveland Clinic. You may not assign your rights under these Terms and any such purported assignment is void.
22. **Waiver of Terms.** The failure of Cleveland Clinic to enforce these Terms for any period of time does not constitute a waiver of its right to enforce these Terms.